

CONSTITUTIONAL LAW II — SUMMER 2026  
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FINAL EXAMINATION

This exam is four pages long (including this one). Please check to see that you have all four pages.

GENERAL INSTRUCTIONS:

- As discussed in the syllabus and in class, you may make use of any written or printed material you bring into the exam room with you, including (without limitation), your casebook, outlines, slides, commercial hornbooks, etc. You **may not** access new material (printed or electronic) after having started the exam, and you may not access any material on the internet or make use of an AI/LLM in your answer. **By turning in the exam, you certify your compliance with these instructions and that all the work on the exam is your own.**
- You should not identify yourself in any way in your exam answers, and you should not talk to me about the exam prior to receipt of your grade. Any questions or concerns during the exam should be directed to the proctors, who can contact me if necessary. You should not discuss the exam with others prior to receiving your grades.

CONTENTS:

- You have **three hours** to complete this exam, which consists of a single fact pattern.
- The maximum word count is **6,000 words**. It is possible to do well on the exam writing less than 6,000 words, and to do poorly while writing (close to) that many words.
- As discussed in class, the exam is not intended to discuss any sort of claim that we did not discuss in class, and neither Congress's ability to enforce the Fourteenth Amendment nor Procedural Due Process are intended to be tested. Other issues we discussed in class may or may not be implicated.
- Read the call of the question (in a box on the last page) carefully.
- Case citations by name are helpful and single names (*e.g.*, *Obergefell*) are sufficient.
- Organize your answers clearly. Think about the most logical way to organize your response before you begin writing. You are encouraged to use headings and sub(-sub, etc.)-headings as appropriate.

Good luck! I'm rooting for you!

**STATE V. WILLIAMSON**

[3 hours; 6,000 words maximum]

***The Statute.***

In 2024, the North Carolina General Assembly enacted the Protecting Our Commerce from Coercive Economic Practices Act (POCCEPA). POCCEPA provides:

**§ 1.** A person commits a Class 2 misdemeanor when he or she, with the intent to influence the policies, practices, or governance of any foreign sovereign nation, knowingly:

(a) Refuses to enter into a contract or commercial transaction with that nation, or with an entity primarily owned or controlled by that nation;

(b) Withdraws from an existing contract or commercial transaction with that nation or with an entity primarily owned or controlled by that nation;

(c) Enters into any organization or association for the purposes of engaging in conduct described in subsections (a) or (b);

(d) Publicly urges other persons to engage in the conduct described in subsections (a) or (b).

**§ 2.** Each act in violation of this section constitutes a separate offense.

**§ 3.** For purposes of this section, “primarily owned or controlled” means (1) majority equity ownership or operational control by the foreign sovereign or its instrumentalities, or (2) greater than 90% equity ownership by citizens of the foreign sovereign;

**§ 4. Severability.** In the event any section or subsection of this statute is declared unenforceable or unconstitutional, the remainder of the statute shall remain in force or effect.

The legislative findings accompanying POCCEPA recite the General Assembly’s concern that “coordinated economic campaigns against foreign nations by persons within this State undermine North Carolina’s commercial and diplomatic interests, distort the State’s economic relationships, and impair the integrity of contractual markets within this State.”

Floor debate prior to the passage of POCCEPA highlighted an incident in 2019 in which ARGOS CORP. — a Greek yogurt company — withdrew plans to open a yogurt bottling facility in Winston-Salem in response to a coordinated boycott organized by Duke University undergraduate students, costing the community 250 jobs and the state tens of millions of dollars in investment. The event sparked a minor diplomatic firestorm and “crazy Dukies” were referenced numerous

times at major global economic forums in 2019-20, prompting concerns that the state was developing an anti-business reputation. The North Carolina Chamber of Commerce, in lobbying for passage of POCCEPA, estimated that economic boycotts and the resulting chill cost the North Carolina economy \$67 million annually.

### ***Background on Enforcement.***

In the two years since POCCEPA took effect, the North Carolina Department of Justice (NCDOJ) has prosecuted six individuals under the law. Four of the prosecutions related to boycotts targeting *The Turkish Hair Co.*, a Türkiye-owned hair transplant business. One prosecution involved a renewed (albeit futile) effort to boycott ARGOS. The last involved a boycott of Cyprus, an island nation in the Mediterranean.

NCDOJ has declined to prosecute or has informally closed inquiries into three documented organizing campaigns aimed at Iranian, Chinese, and Venezuelan companies during the same period. NCDOJ's stated reasons for declining have included "prosecutorial discretion regarding resource allocation," "the relative scale of the alleged conduct," and "the absence of clear in-state nexus."

### ***The Defendant.***

**Dr. Josiah Williamson** is a tenured Professor of Marxist Theory at North Carolina State University, a public university. Williamson's scholarly work focuses on the role that international financial capital markets play in influencing foreign countries' domestic policy.

Beginning in early 2024 — after POCCEPA took effect — Williamson organized and led a campaign that he called "Divestment for Accountability." The campaign urged individuals, institutions, and pension funds to divest from, and refuse to provide loans or debt servicing to, companies owned by Montenegro, a small Mediterranean country that Williamson has publicly described as engaged in systematic human rights violations.

Williamson's activities included:

- Publishing eight op-eds in academic publications, mainstream newspapers, and digital outlets urging divestment from and boycotting of Montenegrin companies;
- Maintaining an active social media presence (operating under his own name, identifying himself by professional title) advocating divestment;
- Coordinating a network of approximately forty researchers and activists in seventeen states—the League of Academics Concerned About Montenegrin Abuses (LACAMA)—who shared research, drafted joint communications, and coordinated outreach to investors;
- Communicating directly with the chief investment officers of two out-of-state pension funds, urging them to divest from Montenegrin sovereign holdings.

Additionally, Williamson has stated on numerous occasions that he considers personal consumption of Montenegrin products to be ethically incompatible with his commitments to human rights. As such, he has consistently ensured that his household and personal purchases are

consistent with these commitments—he refuses to allow any product into his house if Montenegrin goods or services are in the supply chain. He has maintained this position despite a recent fad sweeping the United States, “#MontenegrinBoySummer,” which involves copious consumption of Kratošijan red wine.

Williamson describes his boycott of Montenegro as being part of a proud history of such activism, citing in particular the “Free Produce” movement, which boycotted goods produced by slave labor. The movement was not particularly successful, but it existed contemporaneously with the ratification of the Constitution up until the Civil War and no practitioner was ever prosecuted, even while abolitionist speech was prosecuted in many states throughout the antebellum era. Of course, the Civil Rights movement also made use of sit-ins and other boycotts. Williamson also is fond of pointing out that, in the debate over the Affordable Care Act, opponents of the law’s individual insurance mandate argued (successfully) that Congress did not have the power to force an individual to purchase a product (*NFIB v. Sebelius*, of course).

All of Williamson’s activity described herein has been conducted on his own time, using personal accounts and resources, without representation that he speaks on behalf of NC State. His university employment has not been the subject of any internal disciplinary review.

### ***The Prosecution & Your Job.***

In March 2026, NCDOJ charged Williamson with three counts of violating POCCEPA, one each under subsections 1(a), 1(c), and 1(d). Each count carries the maximum Class 2 misdemeanor penalties of up to 60 days’ imprisonment and a fine of up to \$1,000.

Williamson has approached your firm and indicated his desire to move to dismiss the indictment on constitutional grounds. **Your managing partner has asked you to draft a memo assessing the likelihood of success in dismissing each of the counts against Williamson.**

In articulating that answer, your memorandum should necessarily identify the potential First and Fourteenth Amendment constitutional claims/defenses—whether facial or as-applied—that Williamson can make, and whether those claims will be likely to succeed under current doctrine in light of the State’s potential counter-arguments and Williamson’s available responses to those counter-arguments.

If necessary, in the course of the analysis, you should identify any points at which the doctrine is unsettled or where the analysis genuinely could go either way, as well as identifying any additional facts that would help further guide the analysis. Your partner is uninterested in arguments about whether or not Williamson’s conduct falls within the scope of the statute, except insofar as such an argument may inform a constitutional claim under the First and/or Fourteenth Amendments.